

SOLVED PRACTICE WORKBOOK

Rights and Liabilities of the Government - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Rights and Liabilities of the Government - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes Articles 294 and 295?

- A. These provisions continue and allocate commencement-era property, rights, liabilities and obligations between Union and States.
- B. They govern only private inheritance.
- C. They create the current procurement code.
- D. They abolish later reorganisation statutes.

Answer: A

Explanation: They are succession and continuity provisions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes Article 296?

- A. All ownerless property vests in the Union.
- B. Escheat, lapse and bona vacantia generally vest ownerless property by location, subject to the constitutional proviso.
- C. It is the eminent-domain article.
- D. It governs government contracts.

Answer: B

Explanation: Location and prior governmental purpose matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes Article 298?

- A. It creates sovereign immunity.
- B. It personally contracts through the President.
- C. Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos.
- D. It exempts government companies from ordinary law.

Answer: C

Explanation: Capacity does not remove statutory or rights controls. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes Article 299 form?

- A. An oral promise binds the exchequer automatically.
- B. Substantial compliance always cures missing authority.
- C. The President becomes personally liable.
- D. Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner.

Answer: D

Explanation: The formalities are mandatory public-fund safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes Section 70 restitution?

- A. A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract.
- B. Section 70 validates the Article 299-defective contract.
- C. It always awards the quoted contract price.
- D. It requires no proof of benefit.

Answer: A

Explanation: Contract enforcement and restitution are distinct. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes Article 300 party?

- A. The President must be personally impleaded.
- B. The Union sues or is sued as Union of India; a State uses the name of the State.
- C. Every ministry is a separate constitutional defendant.
- D. Article 300 bars tort suits.

Answer: B

Explanation: Correct party naming reflects governmental legal personality. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes CPC Sections 79 and 80?

- A. Section 80 is blanket sovereign immunity.
- B. Notice is never required.
- C. Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception.
- D. Section 79 creates Article 299 authority.

Answer: C

Explanation: These are procedural rules distinct from substantive liability. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes private tort trajectory?

- A. Every policy decision creates damages.
- B. Nagendra Rao restored blanket immunity.
- C. Kasturi Lal abolished immunity.
- D. The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded.

Answer: D

Explanation: Identify function, duty, causation and modern authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes constitutional tort?

- A. Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages.
- B. It requires no State action.
- C. It replaces every civil trial.
- D. It validates an invalid contract.

Answer: A

Explanation: The remedy vindicates constitutional rights. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes vicarious liability?

- A. Every private act binds the State.
- B. Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible.
- C. Good faith automatically defeats all claims.
- D. State liability always excludes officer liability.

Answer: B

Explanation: Employment nexus, function and statutory protection matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes Article 300A?

- A. It authorises all government contracts.
- B. Executive instruction alone is always authority of law.
- C. No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics.
- D. It is a Fundamental Right in Part III.

Answer: C

Explanation: Property deprivation requires legal authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes procurement and arbitration?

- A. GeM replaces Article 299.
- B. Arbitration removes judicial supervision entirely.
- C. A draft amendment changes current law.
- D. Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution.

Answer: D

Explanation: Platform, manual, contract and statute must be distinguished. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning Articles 294 and 295?

- A. These provisions continue and allocate commencement-era property, rights, liabilities and obligations between Union and States.
- B. They create the current procurement code.
- C. They abolish later reorganisation statutes.
- D. They govern only private inheritance.

Answer: A

Explanation: They are succession and continuity provisions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning Article 296?

- A. It governs government contracts.
- B. Escheat, lapse and bona vacantia generally vest ownerless property by location, subject to the constitutional proviso.
- C. It is the eminent-domain article.
- D. All ownerless property vests in the Union.

Answer: B

Explanation: Location and prior governmental purpose matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning Article 298?

- A. It personally contracts through the President.
- B. It creates sovereign immunity.
- C. Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos.
- D. It exempts government companies from ordinary law.

Answer: C

Explanation: Capacity does not remove statutory or rights controls. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning Article 299 form?

- A. The President becomes personally liable.
- B. Substantial compliance always cures missing authority.
- C. An oral promise binds the exchequer automatically.
- D. Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner.

Answer: D

Explanation: The formalities are mandatory public-fund safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning Section 70 restitution?

- A. A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract.
- B. It requires no proof of benefit.
- C. It always awards the quoted contract price.
- D. Section 70 validates the Article 299-defective contract.

Answer: A

Explanation: Contract enforcement and restitution are distinct. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning Article 300 party?

- A. The President must be personally impleaded.
- B. The Union sues or is sued as Union of India; a State uses the name of the State.
- C. Every ministry is a separate constitutional defendant.
- D. Article 300 bars tort suits.

Answer: B

Explanation: Correct party naming reflects governmental legal personality. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning CPC Sections 79 and 80?

- A. Section 79 creates Article 299 authority.
- B. Notice is never required.
- C. Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception.
- D. Section 80 is blanket sovereign immunity.

Answer: C

Explanation: These are procedural rules distinct from substantive liability. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning private tort trajectory?

- A. Every policy decision creates damages.
- B. Nagendra Rao restored blanket immunity.
- C. Kasturi Lal abolished immunity.
- D. The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded.

Answer: D

Explanation: Identify function, duty, causation and modern authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning constitutional tort?

- A. Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages.
- B. It requires no State action.
- C. It replaces every civil trial.
- D. It validates an invalid contract.

Answer: A

Explanation: The remedy vindicates constitutional rights. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning vicarious liability?

- A. Good faith automatically defeats all claims.
- B. Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible.
- C. Every private act binds the State.
- D. State liability always excludes officer liability.

Answer: B

Explanation: Employment nexus, function and statutory protection matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning Article 300A?

- A. It is a Fundamental Right in Part III.
- B. It authorises all government contracts.
- C. No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics.
- D. Executive instruction alone is always authority of law.

Answer: C

Explanation: Property deprivation requires legal authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning procurement and arbitration?

- A. Arbitration removes judicial supervision entirely.
- B. A draft amendment changes current law.
- C. GeM replaces Article 299.
- D. Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution.

Answer: D

Explanation: Platform, manual, contract and statute must be distinguished. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about Articles 294 and 295. Which correction is most accurate?

- A. These provisions continue and allocate commencement-era property, rights, liabilities and obligations between Union and States.
- B. They abolish later reorganisation statutes.
- C. They govern only private inheritance.
- D. They create the current procurement code.

Answer: A

Explanation: They are succession and continuity provisions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about Article 296. Which correction is most accurate?

- A. It is the eminent-domain article.
- B. Escheat, lapse and bona vacantia generally vest ownerless property by location, subject to the constitutional proviso.
- C. All ownerless property vests in the Union.
- D. It governs government contracts.

Answer: B

Explanation: Location and prior governmental purpose matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about Article 298. Which correction is most accurate?

- A. It creates sovereign immunity.
- B. It exempts government companies from ordinary law.
- C. Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos.
- D. It personally contracts through the President.

Answer: C

Explanation: Capacity does not remove statutory or rights controls. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about Article 299 form. Which correction is most accurate?

- A. An oral promise binds the exchequer automatically.
- B. Substantial compliance always cures missing authority.
- C. The President becomes personally liable.
- D. Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner.

Answer: D

Explanation: The formalities are mandatory public-fund safeguards. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about Section 70 restitution. Which correction is most accurate?

- A. A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract.
- B. Section 70 validates the Article 299-defective contract.
- C. It requires no proof of benefit.
- D. It always awards the quoted contract price.

Answer: A

Explanation: Contract enforcement and restitution are distinct. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about Article 300 party. Which correction is most accurate?

- A. Every ministry is a separate constitutional defendant.
- B. The Union sues or is sued as Union of India; a State uses the name of the State.
- C. The President must be personally impleaded.
- D. Article 300 bars tort suits.

Answer: B

Explanation: Correct party naming reflects governmental legal personality. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about CPC Sections 79 and 80. Which correction is most accurate?

- A. Section 80 is blanket sovereign immunity.
- B. Section 79 creates Article 299 authority.
- C. Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception.
- D. Notice is never required.

Answer: C

Explanation: These are procedural rules distinct from substantive liability. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about private tort trajectory. Which correction is most accurate?

- A. Every policy decision creates damages.
- B. Nagendra Rao restored blanket immunity.
- C. Kasturi Lal abolished immunity.
- D. The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded.

Answer: D

Explanation: Identify function, duty, causation and modern authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about constitutional tort. Which correction is most accurate?

- A. Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages.
- B. It requires no State action.
- C. It replaces every civil trial.
- D. It validates an invalid contract.

Answer: A

Explanation: The remedy vindicates constitutional rights. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about vicarious liability. Which correction is most accurate?

- A. Every private act binds the State.
- B. Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible.
- C. State liability always excludes officer liability.
- D. Good faith automatically defeats all claims.

Answer: B

Explanation: Employment nexus, function and statutory protection matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about Article 300A. Which correction is most accurate?

- A. It authorises all government contracts.
- B. It is a Fundamental Right in Part III.
- C. No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics.
- D. Executive instruction alone is always authority of law.

Answer: C

Explanation: Property deprivation requires legal authority. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about procurement and arbitration. Which correction is most accurate?

- A. Arbitration removes judicial supervision entirely.
- B. GeM replaces Article 299.
- C. A draft amendment changes current law.
- D. Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution.

Answer: D

Explanation: Platform, manual, contract and statute must be distinguished. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about Articles 294 and 295?

- A. These provisions continue and allocate commencement-era property, rights, liabilities and obligations between Union and States.
- B. They create the current procurement code.
- C. They abolish later reorganisation statutes.
- D. They govern only private inheritance.

Answer: A

Remedial explanation: They are succession and continuity provisions. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about Article 296?

- A. It governs government contracts.
- B. Escheat, lapse and bona vacantia generally vest ownerless property by location, subject to the constitutional proviso.
- C. It is the eminent-domain article.
- D. All ownerless property vests in the Union.

Answer: B

Remedial explanation: Location and prior governmental purpose matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about Article 298?

- A. It exempts government companies from ordinary law.
- B. It creates sovereign immunity.

- C. Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos.
- D. It personally contracts through the President.

Answer: C

Remedial explanation: Capacity does not remove statutory or rights controls. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about Article 299 form?

- A. Substantial compliance always cures missing authority.
- B. The President becomes personally liable.
- C. An oral promise binds the exchequer automatically.
- D. Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner.

Answer: D

Remedial explanation: The formalities are mandatory public-fund safeguards. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about Section 70 restitution?

- A. A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract.
- B. It always awards the quoted contract price.
- C. Section 70 validates the Article 299-defective contract.
- D. It requires no proof of benefit.

Answer: A

Remedial explanation: Contract enforcement and restitution are distinct. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about Article 300 party?

- A. Every ministry is a separate constitutional defendant.
- B. The Union sues or is sued as Union of India; a State uses the name of the State.
- C. Article 300 bars tort suits.
- D. The President must be personally impleaded.

Answer: B

Remedial explanation: Correct party naming reflects governmental legal personality. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about CPC Sections 79 and 80?

- A. Section 80 is blanket sovereign immunity.
- B. Section 79 creates Article 299 authority.
- C. Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception.
- D. Notice is never required.

Answer: C

Remedial explanation: These are procedural rules distinct from substantive liability. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about private tort trajectory?

- A. Kasturi Lal abolished immunity.
- B. Every policy decision creates damages.

- C. Nagendra Rao restored blanket immunity.
- D. The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded.

Answer: D

Remedial explanation: Identify function, duty, causation and modern authority. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about constitutional tort?

- A. Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages.
- B. It replaces every civil trial.
- C. It validates an invalid contract.
- D. It requires no State action.

Answer: A

Remedial explanation: The remedy vindicates constitutional rights. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about vicarious liability?

- A. Good faith automatically defeats all claims.
- B. Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible.
- C. State liability always excludes officer liability.
- D. Every private act binds the State.

Answer: B

Remedial explanation: Employment nexus, function and statutory protection matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about Article 300A?

- A. It authorises all government contracts.
- B. It is a Fundamental Right in Part III.
- C. No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics.
- D. Executive instruction alone is always authority of law.

Answer: C

Remedial explanation: Property deprivation requires legal authority. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about procurement and arbitration?

- A. Arbitration removes judicial supervision entirely.
- B. GeM replaces Article 299.
- C. A draft amendment changes current law.
- D. Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution.

Answer: D

Remedial explanation: Platform, manual, contract and statute must be distinguished. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Supporting routed PYQ 1 - 2025 Prelims GS-I Q59

Question: Evaluate statements on a Governor's answerability to courts, the bar on criminal proceedings during the term, and legislative immunity for words spoken inside a State Legislature.

Directive: Objective immunity-source distinction · **Marks:** 2 · **Word limit:** objective

Model solution

Opening: Evaluate statements on a Governor's answerability to courts, the bar on criminal proceedings during the term, and legislative immunity for words spoken inside a State Legislature. The answer must respond to the directive

Objective immunity-source distinction rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** The official Set-A key is D: all three constitutional statements are correct.
- **Claim -> evidence -> analysis -> qualification:** Article 361 protects the Governor personally for official powers and during the term.
- **Claim -> evidence -> analysis -> qualification:** Article 194 protects legislative speech/vote within the constitutional privilege field.
- **Claim -> evidence -> analysis -> qualification:** These personal/legislative protections do not create blanket governmental immunity.
- **Claim -> evidence -> analysis -> qualification:** Article 299, Article 300, CPC notice and criminal sanction arise from different sources.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Map the rights, property and liability provisions in Articles 294 to 300.

Directive: Map · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Map the rights, property and liability provisions in Articles 294 to 300. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 296 - claim -> evidence -> analysis -> qualification:** Escheat, lapse and bona vacantia generally vest ownerless property by location, subject to the constitutional proviso. Location and prior governmental purpose matter.
- **Article 298 - claim -> evidence -> analysis -> qualification:** Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos. Capacity does not remove statutory or rights controls.
- **Article 299 Form - claim -> evidence -> analysis -> qualification:** Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner. The formalities are mandatory public-fund safeguards.
- **Section 70 Restitution - claim -> evidence -> analysis -> qualification:** A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract. Contract enforcement and restitution are distinct.
- **Article 300 Party - claim -> evidence -> analysis -> qualification:** The Union sues or is sued as Union of India; a State uses the name of the State. Correct party naming reflects governmental legal personality.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Explain the mandatory requirements and consequences of Article 299 government contracts.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain the mandatory requirements and consequences of Article 299 government contracts.

The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 298 - claim -> evidence -> analysis -> qualification:** Union and State executive power extends to trade, business, property and contracts, subject to legislative-field provisos. Capacity does not remove statutory or rights controls.
- **Article 299 Form - claim -> evidence -> analysis -> qualification:** Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner. The formalities are mandatory public-fund safeguards.
- **Section 70 Restitution - claim -> evidence -> analysis -> qualification:** A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract. Contract enforcement and restitution are distinct.
- **Article 300 Party - claim -> evidence -> analysis -> qualification:** The Union sues or is sued as Union of India; a State uses the name of the State. Correct party naming reflects governmental legal personality.
- **Cpc Sections 79 And 80 - claim -> evidence -> analysis -> qualification:** Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception. These are procedural rules distinct from substantive liability.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Distinguish an enforceable government contract from restitution under Contract Act Section 70.

Directive: Distinguish · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish an enforceable government contract from restitution under Contract Act Section 70.

The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 299 Form - claim -> evidence -> analysis -> qualification:** Government contracts must be expressed in the President/Governor's name, executed on their behalf and by authorised persons/manner. The formalities are mandatory public-fund safeguards.
- **Section 70 Restitution - claim -> evidence -> analysis -> qualification:** A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract. Contract enforcement and restitution are distinct.
- **Article 300 Party - claim -> evidence -> analysis -> qualification:** The Union sues or is sued as Union of India; a State uses the name of the State. Correct party naming reflects governmental legal personality.
- **Cpc Sections 79 And 80 - claim -> evidence -> analysis -> qualification:** Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception. These are procedural rules distinct from substantive liability.
- **Private Tort Trajectory - claim -> evidence -> analysis -> qualification:** The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded. Identify function, duty, causation and modern authority.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Examine Article 300 with CPC Sections 79 and 80 in suits against government.

Directive: Examine · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Examine Article 300 with CPC Sections 79 and 80 in suits against government. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Section 70 Restitution - claim -> evidence -> analysis -> qualification:** A lawful non-gratuitous act whose benefit government enjoys may found restitution independently of an invalid contract. Contract enforcement and restitution are distinct.
- **Article 300 Party - claim -> evidence -> analysis -> qualification:** The Union sues or is sued as Union of India; a State uses the name of the State. Correct party naming reflects governmental legal personality.
- **Cpc Sections 79 And 80 - claim -> evidence -> analysis -> qualification:** Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception. These are procedural rules distinct from substantive liability.
- **Private Tort Trajectory - claim -> evidence -> analysis -> qualification:** The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded. Identify function, duty, causation and modern authority.
- **Constitutional Tort - claim -> evidence -> analysis -> qualification:** Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages. The remedy vindicates constitutional rights.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Trace the evolution of sovereign immunity in Indian tort law and state the present qualified position.

Directive: Trace · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Trace the evolution of sovereign immunity in Indian tort law and state the present qualified position. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 300 Party - claim -> evidence -> analysis -> qualification:** The Union sues or is sued as Union of India; a State uses the name of the State. Correct party naming reflects governmental legal personality.
- **Cpc Sections 79 And 80 - claim -> evidence -> analysis -> qualification:** Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception. These are procedural rules distinct from substantive liability.
- **Private Tort Trajectory - claim -> evidence -> analysis -> qualification:** The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded. Identify function, duty, causation and modern authority.
- **Constitutional Tort - claim -> evidence -> analysis -> qualification:** Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages. The remedy vindicates constitutional rights.
- **Vicarious Liability - claim -> evidence -> analysis -> qualification:** Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible. Employment nexus, function and statutory protection matter.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. Analyse the distinction between private tort liability and constitutional-tort compensation.

Directive: Analyse · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Analyse the distinction between private tort liability and constitutional-tort compensation. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Cpc Sections 79 And 80 - claim -> evidence -> analysis -> qualification:** Section 79 governs party description; Section 80 ordinarily requires two-month notice before specified government/official suits, with an urgent-relief exception. These are procedural rules distinct from substantive liability.
- **Private Tort Trajectory - claim -> evidence -> analysis -> qualification:** The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded. Identify function, duty, causation and modern authority.
- **Constitutional Tort - claim -> evidence -> analysis -> qualification:** Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages. The remedy vindicates constitutional rights.
- **Vicarious Liability - claim -> evidence -> analysis -> qualification:** Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible. Employment nexus, function and statutory protection matter.
- **Article 300A - claim -> evidence -> analysis -> qualification:** No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics. Property deprivation requires legal authority.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Assess vicarious liability, official protection and the act-of-State distinction.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess vicarious liability, official protection and the act-of-State distinction. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Private Tort Trajectory - claim -> evidence -> analysis -> qualification:** The colonial sovereign-function distinction has been narrowed as welfare-State operations expanded. Identify function, duty, causation and modern authority.
- **Constitutional Tort - claim -> evidence -> analysis -> qualification:** Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages. The remedy vindicates constitutional rights.
- **Vicarious Liability - claim -> evidence -> analysis -> qualification:** Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible. Employment nexus, function and statutory protection matter.
- **Article 300A - claim -> evidence -> analysis -> qualification:** No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics. Property deprivation requires legal authority.
- **Procurement And Arbitration - claim -> evidence -> analysis -> qualification:** Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution. Platform, manual, contract and statute must be distinguished.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Discuss public procurement and arbitration as instruments of accountable governmental contracting.

Directive: Discuss · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Discuss public procurement and arbitration as instruments of accountable governmental contracting. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Constitutional Tort - claim -> evidence -> analysis -> qualification:** Writ courts may award public-law compensation for Fundamental-Right violations, distinct from private damages. The remedy vindicates constitutional rights.
- **Vicarious Liability - claim -> evidence -> analysis -> qualification:** Government may answer for employee torts in the course of employment while personal and disciplinary responsibility remain separately possible. Employment nexus, function and statutory protection matter.
- **Article 300A - claim -> evidence -> analysis -> qualification:** No person may be deprived of property except by authority of law; it is distinct from Articles 294-300 liability mechanics. Property deprivation requires legal authority.
- **Procurement And Arbitration - claim -> evidence -> analysis -> qualification:** Fair procurement, authorised Article 299 execution, audit and a valid arbitration clause create accountable dispute resolution. Platform, manual, contract and statute must be distinguished.
- **Articles 294 And 295 - claim -> evidence -> analysis -> qualification:** These provisions continue and allocate commencement-era property, rights, liabilities and obligations between Union and States. They are succession and continuity provisions.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.